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MONSANTO CO. *v.* DURNELL

CERTIORARI TO THE COURT OF APPEALS OF MISSOURI, EASTERN DISTRICT

No. 24–1068. Argued April 27, 2026—Decided June 25, 2026

Monsanto Company manufactures and distributes Roundup, a glyphosate-based herbicide designed to control weeds. The EPA has repeatedly evaluated glyphosate and repeatedly concluded that glyphosate is not likely to cause cancer. EPA's assessment is shared by many other regulatory bodies around the world. In accordance with EPA's view that glyphosate is not likely to cause cancer in humans, EPA has not required labels on glyphosate-based pesticides like Roundup to include a cancer warning.

In 2019, John Durnell sued Monsanto in Missouri state court, alleging that he had used Monsanto's Roundup products for about 20 years and that they had caused his non-Hodgkin's lymphoma. As relevant here, Durnell brought a failure-to-warn tort claim, asserting that Monsanto should have included a cancer warning on Roundup's label. A jury agreed and awarded Durnell more than $1 million on the failure-to-warn theory. On appeal, the Missouri Court of Appeals affirmed, 707 S. W. 3d 828. The Court of Appeals rejected Monsanto's argument that the Federal Insecticide, Fungicide, and Rodenticide Act expressly preempted Durnell's failure-to-warn claim, see 7 U. S. C. § 136v(b). This Court granted certiorari.

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Held: FIFRA expressly preempts Durnell's state-law failure-to-warn claim because the claim would require Monsanto to add a cancer warning to Roundup's label. Pp. 382–395.

(a) FIFRA's preemption clause, entitled "Uniformity," provides that a "State shall not impose or continue in effect any requirements for labeling or packaging in addition to or different from those required under this subchapter." 7 U. S. C. § 136v(b). FIFRA therefore preempts a state-law labeling requirement that differs from the federal labeling requirements imposed under FIFRA. Pp. 382–388.

(1) To register a pesticide, EPA must approve the pesticide's label by determining that the label contains all warnings "necessary and . . . adequate to protect health and the environment" and that the label does not include any "false or misleading" statements. §§ 136a(c)(5)(B), 136(q)(1)(A), (G). After EPA approves a pesticide's label at registration, manufacturers are legally *required* to use that label unless and until EPA approves or requires a label change and amends the pesti-

cide's registration. See § 136a(f)(1); 40 CFR §§ 152.44(a), 156.70(c). If a manufacturer does not use the EPA-approved label, it may be subject to civil and criminal penalties. See 7 U. S. C. §§ 136*l*, 136j(a)(1)(E).

Federal law therefore requires Monsanto to sell Roundup with the label that EPA approved at the initial registration and that EPA has subsequently re-approved on multiple occasions—that is, the label without a cancer warning. Meanwhile, as the Court's precedents make clear and as the parties agree, state tort duties constitute state labeling requirements. See *Bates* v. *Dow Agrosciences LLC*, 544 U. S. 431, 443–444. Durnell's state tort claim would require Monsanto to add a cancer warning to its labels, which is "in addition to" and "different from" Monsanto's federal-law labeling obligations. Pp. 383–385.

(2) The Court's decision in *Riegel* v. *Medtronic, Inc.*, 552 U. S. 312, further confirms that Durnell's failure-to-warn claim is expressly preempted. In *Riegel*, the Court addressed the preemption clause in the Medical Device Amendments of 1976, which is nearly identical to FIFRA's preemption clause. *Id.*, at 316; see 21 U. S. C. § 360k(a). The *Riegel* Court concluded that FDA's premarket approval of devices imposed "'requirements' under" the Act's preemption clause, 552 U. S., at 322, and therefore that FDA's premarket approval of a medical device preempted state-law claims premised on additional or contrary safety requirements. *Id.*, at 323–325. Pp. 385–388.

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(b) Durnell's counterarguments are unpersuasive. Pp. 388–395.

(1) Durnell contends that a Missouri failure-to-warn claim, like FIFRA itself, simply requires manufacturers to include adequate warnings to protect human health and not to include false or misleading statements. But that argument operates at far too high a level of generality and disregards the central and comprehensive role that EPA performs in making labeling determinations under FIFRA's registration provisions. Pp. 388.

(2) Durnell argues that EPA's regulations and its procedures for registering pesticides and approving pesticide labels exceed or contravene EPA's statutory authority under FIFRA. Durnell is incorrect. FIFRA empowers EPA to "prescribe regulations to carry out the provisions of [FIFRA]," § 136w(a)(1), and expressly directs EPA to register pesticides and "determin[e]" that the pesticide's "labeling" complies with FIFRA's many specific requirements. § 136a(c)(5)(B). During that extensive registration process, EPA critically evaluates the pesticide's label to ensure that the label contains all warnings necessary to protect human health. And after EPA decides the appropriate warnings for a pesticide's label, a manufacturer is legally required to use that label unless and until EPA subsequently approves or requires a new label. 40 CFR §§ 152.44(a), 156.70(c). Pp. 389.

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(3) Durnell seizes on 7 U. S. C. § 136a(f)(2), which provides that registration shall not be "construed as a defense for the commission of any offense under [FIFRA]," but that registration is "prima facie" evidence of compliance with the registration provisions. By its text, § 136a(f)(2) does not apply to state tort suits; that provision simply clarifies that registration does not bar EPA enforcement actions against manufacturers for violating FIFRA. Additionally, Monsanto is not invoking the mere fact of "registration" as a complete defense to state tort suits but rather is relying on EPA's specific determination that cancer warnings are not required for glyphosate-based pesticide labels. This argument also contravenes *Riegel*, where the possibility that FDA could withdraw its premarket approval based on new evidence or new analysis did not preclude the Court from concluding that FDA's premarket approval imposed "requirements" on manufacturers that preempted state tort suits under the Medical Device Amendments' materially identical preemption clause. 552 U. S., at 322–323. Pp. 389–393.

707 S. W. 3d 828, reversed and remanded.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, SOTOMAYOR, KAGAN, and BARRETT, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 395. JACKSON, J., filed a dissenting opinion, in which GORSUCH, J., joined, *post*, p. 398.

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Paul D. Clement argued the cause for petitioner. With him on the briefs were *Matthew D. Rowen*, *James Y. Xi*, *Niccolo A. Beltramo*, *David M. Zionts*, *Michael X. Imbroscio*, and *K. Lee Marshall*.

Principal Deputy Solicitor General Harris argued the cause for the United States as *amicus curiae* urging reversal. With her on the brief were *Solicitor General Sauer*, *Deputy Assistant Attorney General Stander*, and *Aaron Z. Roper*.

Ashley C. Keller argued the cause for respondent. With him on the brief were *John James Snidow*, *James G. Onder*, *W. Wylie Blair*, *Jonathan F. Mitchell*, *T. Roe Frazer II*, *Thomas Roe Frazer III*, *James Grant LaBar*, and *R. Prescott Sifton, Jr.**

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JUSTICE KAVANAUGH delivered the opinion of the Court.

Under authority granted by the Federal Insecticide, Fungicide, and Rodenticide Act, the Environmental Protection

licitor General, and *Zachary B. Pohlman*, Deputy Solicitor General, by *Brenna Bird*, Attorney General of Iowa, and *Eric Wessan*, Solicitor General, by *Catherine L. Hanaway*, Attorney General of Missouri, and *Louis J. Capozzi III*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Chris Carr* of Georgia, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Austin Knudsen* of Montana, *Drew Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *David Sunday* of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, and *Derek Brown* of Utah; for the Agricultural Retailers Association et al. by *John L. Rockenbach* and *Richard D. Gupton*; for the American Free Enterprise Chamber of Commerce by *Michael Buschbacher* and *James R. Conde*; for the American Tort Reform Association et al. by *Cary Silverman*; for the Atlantic Legal Foundation by *Lawrence S. Ebner*; for the Chamber of Commerce of the United States of America et al. by *William M. Jay*, *Andrew R. Varcoe*, *Audrey Dos Santos*, *James M. Beck*, *Aleacia Chinkhota*, *Cory L. Andrews*, *James C. Stansel*, and *Melissa B. Kimmel*; for CropLife America by *Shannen W. Coffin* and *Conor Tucker*; for Farm Bureau Organizations of California et al. by *Michael B. Kimberly*, *Kari E. Fisher*, *Chad A. Endsley*, and *Leah F. Curtis*; for National Agricultural Associations by *David Y. Chung*, *Ellen Steen*, and *Travis Cushman*; for the Retail Litigation Center, Inc., by *William P. Barnette*, *Monica Welt*, and *I. Cason Hewgley IV*; and for Missouri State Sen. Jason Bean et al. by *Edward D. Greim* and *Katherine E. Mitra*.

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